

The Constitution (Eighty-Sixth Amendment) Act, 2002 inserted Article 21-A in the Constitution of India to provide free and compulsory education to all children in the age group of six to fourteen years as a fundamental right in such a manner as the State may, by law, determine. The Right of Children to Free and Compulsory Education (RTE) Act, 2009, represents the legislation envisaged under Article 21-A. The RTE Act came into effect on 1 April, 2010.

18. Which one of the following is a human right as well as a fundamental right under the Constitution of India?

- (a) Right to Information (b) Right to Work
(c) Right to Education (d) Right to Housing

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (c)

See the explanation of the above question.

19. Untouchability is abolished by which Article of the Indian Constitution?

- (a) Article 14 (b) Article 15
(c) Article 17 (d) Article 22

69th B.P.S.C. (Pre) 2023

Ans. (c)

Article 17 of the Indian Constitution abolished 'untouchability', forbade its practice in any form and made enforcement of any disability arising out of 'untouchability', an offence punishable in accordance with law.

Directive Principles of State Policy

1. How are Directive Principles of state policy different from Fundamental Right?

- (a) The aforesaid are for the control Government and the above state.
(b) The aforesaid is not a part of the constitution where the above state.
(c) Directive Principles of policy are not enforceable while fundamental right are enforceable.
(d) None of the above

41st B.P.S.C. (Pre) 1996

Ans. (c)

Directive Principles of State Policy are different from Fundamental Rights, as Directive Principles are not enforceable whereas Fundamental Rights are enforceable by the Court. The Directive Principles are described in Part IV of the Constitution and provide for the establishment of a welfare state. While the Fundamental Right mentioned in Part III are the guarantees of security given to the individuals towards the State.

2. The concept of welfare state included in the Constitution of India in the:

- (a) Directive Principles of State Policy
(b) Fourth Schedule of the Constitution
(c) Fundamental Rights
(d) Preamble of the Constitution

41th B.P.S.C. (Pre) 1994

Ans. (a)

The concept of a welfare State is included in the Constitution of India in part IV i.e. Directive Principles of State Policy described in Article 36 to Article 51 of the Constitution.

3. Panchayati Raj System in India is laid down under-

- (a) Fundamental Rights
(b) Fundamental Duties
(c) Directive Principles of State Policy
(d) Election Commission Act

45th B.P.S.C. (Pre) 2001

Ans. (c)

Panchayati Raj System in India is laid down under the Directive Principles of State Policy (Part IV) under Article 40. According to this Article, 'State shall take steps to organize village Panchayats and endow them with such powers and authority as may be necessary to enable these to function as units of self-government'.

4. The Ministry of Panchayati Raj was created in the Central Government of India in which of the following years?

- (a) 2002-2003 (b) 2004
(c) 2005-2006 (d) More than one of the above
(e) None of the above

B.P.S.C. PRT 2023 Shift II

Ans. (b)

Ministry of Panchayati Raj was created in May 2004. The Ministry is headed by a minister of cabinet rank.

5. Which one of the following Articles directs the State Governments to organize the Panchayats?

- (a) Article 33 (b) Article 40
(c) Article 48 (d) Article 50
(e) None of the above/More than one of the above

64th B.P.S.C. (Pre) 2018

Ans. (b)

Article 40—The state shall take steps to organize village Panchayats and endow them with necessary powers and authority, to enable them to function as units of self - government.